

Park (Contra Costa County Superior Court Case No. C24-02653) given the overlapping issues and/or overlapping parties.

- Whether an arbitration contract may be modified or superseded after the death of one party, where the contract includes three or more parties. Notably, while defendant included argument on this point in the reply, plaintiff has not had the opportunity to respond. Defendant cited minimal authority outside the context of a deceased party's testamentary intent, which does not appear to be at issue here.

In addition to the supplemental briefing, the Court requests that, if in the possession of either party, "page 4 of 4" of the 2017 "Cemetery Agreement" be attached to a declaration (for ease of filing) and filed with the Court as it appears to have been omitted in the documents filed to date.

15. 9:00 AM CASE NUMBER: C25-01650
CASE NAME: SANDY PARK VS. RENE GAMBOA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: GAMBOA, RENE
TENTATIVE RULING:

Before the Court is a demurrer by defendants Rene Gamboa and Lewis Brisbois Bisgaard & Smith, LLP to Plaintiff's complaint. For the reasons set forth, the demurrer is **sustained, with leave to amend**.

Background

Plaintiff Sandy Park filed her complaint against her former attorney, Rene Gamboa, and his law firm, Lewis Brisbois Bisgaard & Smith, LLP (the "Firm") commencing this action on June 12, 2025. Plaintiff alleges that Gamboa and the Firm represented her as a plaintiff in a lease dispute with Nancy Kim beginning in March 2021. (Compl. ¶¶ 1, 5, 6.) The prior action out of which Plaintiff's claims against defendants arise is Case No. 19-CV-341095 in the Superior Court for the County of Santa Clara (the "Kim Action"). (See, e.g., Compl. Exhs. D and E-8, among others.)

Park alleges defendants filed an ex parte application to be relieved as Plaintiff's counsel six weeks before the trial in the Kim Action based on Kim's allegedly "fabricated" story that Kim's signature on an August 12, 2018 note containing the disputed lease extension was forged. (Compl. ¶¶ 1-3, 8, 10.) (Exhibit H to the complaint refers to a note dated August 12, 2019 – see Nanette Barto, CQDE Decl. ¶ 2.) Plaintiff alleges she was on vacation, was not aware of the ex parte application or order relieving defendants from their representation until July 31, 2023, and she did not have an opportunity to contest the application. (Compl. ¶¶ 2, 6.) After she returned from vacation, she sent Gamboa information she contends showed Kim's position on the forgery was false. (Compl. ¶ 11.)

Park alleges on July 24, 2023, Kim filed a motion for reconsideration of an order denying her motion for summary judgment in which Kim accused Park of the forgery and perjury, and which was set for hearing on August 24, 2023, but Kim withdrew the motion, apparently after the ex parte application and order allowing Park's counsel to withdraw, which Plaintiff interprets as evidence that Kim knew her position on the forgery was false. (Compl. ¶¶ 12, 25, 26.) She also alleges Gamboa contacted

Park's "signing expert" Nannette Barto on July 18, 2023 and conferred with her about the August 12 note without Park's permission. (Compl. ¶¶ 13, 16, 39, 40, 43.) She alleges these circumstances show Kim, the expert Nannette Barto, and Gamboa "worked together" and "coordinated their conduct." (Compl. ¶¶ 13, 26.)

Plaintiff alleges she was unable to obtain new counsel to represent her at the two-day trial. (Compl. ¶ 14.) She alleges Gamboa ended his attorney-client relationship with her on July 25, 2023, and that on December 20, 2023, a tentative ruling was issued against her in the Kim Action. (Compl. ¶¶ 18, 19.) She asserts Gamboa should have returned her \$5,000 retainer on July 25, 2023 when their attorney-client relationship ended. The Firm sent her a check in the amount of \$13,753.66 as a "refund" of part of the attorneys' fees. (Compl. ¶¶ 19, 52.) The check in that amount attached as part of Exhibit G to the complaint is dated December 22, 2023. She alleges Gamboa's conduct in being relieved as her counsel, among other things, caused her to lose her case. (Compl. ¶¶ 39-41, 50-52.)

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.) In ruling on a demurrer, the Court also considers matters subject to judicial notice. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

A general demurrer on statute of limitations grounds may be sustained if it "clearly and affirmatively" appears on the face of the complaint that the cause of action is barred, not that it might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.) If a complaint fails to state a cause of action but there is a reasonable possibility of amendment to cure the deficiencies, then leave to amend must be granted. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 39.)

Procedural Note on Opposition Memorandum

The Court interprets Plaintiff's document styled "Reply" to demurrer and motion to strike as her "opposition" to the motion. The opposition is 14 pages. A table of contents and table of authorities is required for a memorandum that exceeds 10 pages. (Cal. R. Ct., Rule 3.1113(f).)

Procedural Note on Park Declaration Attached to Complaint and Declaration Attached to Opposition to Demurrer

Park attaches a declaration by her "in support of" her complaint. In her opposition to the demurrer, Park attaches a declaration and series of exhibits. In ruling on a demurrer, the Court does not consider evidence, except matters subject to judicial notice. (*Donabedian, supra*, 116 Cal.App.4th at 994 ["In reviewing the ruling on a demurrer, a court cannot consider, as Mercury would have us do, the substance of declarations, matter not subject to judicial notice, or documents judicially noticed but not accepted for the truth of their contents. (Citations omitted.)"].)

Defendants' Request for Judicial Notice

In support of their demurrer, Defendants request the Court take judicial notice of court records from the Kim Action, including a Reply Memorandum with exhibits filed in connection with a summary judgment motion in the Kim Action (RJN Exh. 1), and a Statement of Decision and Judgment filed February 20, 2024 in the Kim Action (RJN Exh. 2). The Court **denies** Defendants' request for judicial notice of Exhibit 1 as irrelevant to the determination of the issues on the demurrer (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6) but **grants** the request as to Exhibit 2 pursuant to Evidence Code section 452(d).

Judicial notice of a prior order or judgment may be taken in ruling on a demurrer. (*Shine v. Williams Sonoma, Inc.* (2018) 23 Cal.App.5th 1070 [affirming judgment dismissing complaint on the grounds of res judicata based on prior litigation and a settlement in the prior litigation].) (*See also Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].) A demurrer may be sustained based on judicially noticed documents or facts, even if they contradict allegations of the complaint. (*Evans v. City of Berkeley, supra*, 38 Cal.4th at 7 fn. 2, 8 fn. 3, and 9 fn. 5 [in which the Court took judicial notice of a City resolution, legislative history, a memorandum from a city manager, minutes, a city attorney's opinion, and a letter, alleged in the original complaint but not the operative complaint, from which both sides quoted and the Court found "no potential dispute exists as to the letter's language, allowing its consideration on demurrer"].) The Court does not take judicial notice of the truth of the findings or conclusions in the Statement of Decision and Judgment (RJN Exh. 2) to the extent reasonably disputable, but the Court takes judicial notice that the findings and conclusions were made, and the Statement of Decision and Judgment issued and filed with the Court in the Kim Action on the date stated on the face of the document, and their legal effect. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1570.)

Analysis

Plaintiff's complaint alleges causes of action for (a) breach of contract and professional negligence (1st C/A), breach of fiduciary duty (2nd C/A), and failure to return retainer (3rd C/A). Defendants' demurrer is made on the ground Plaintiff's claims are barred by the statute of limitations on the face of the complaint, and the complaint therefore fails to allege facts sufficient to state a cause of action against the defendants. (Code Civ. Proc. § 430.10(e).)

Code of Civil Procedure section 340.6(a) governs the statute of limitations on claims for attorney malpractice. The statute provides, "An action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first." (Code Civ. Proc. § 340.6(a).) The statute also provides that the period for filing an action is tolled "during the time that any of the following exist: [¶] (1) The plaintiff has not sustained actual injury; [¶] (2) the attorney continues to represent the plaintiff regarding the specific subject matter in which the alleged wrongful act or omission occurred; . . . [¶] the plaintiff is under a legal or physical disability that restricts plaintiff's ability to commence legal action. . . ." (*Id.*)

The one-year statute of limitations of section 340.6 applies not only to a cause of action for attorney

malpractice but also to causes of action stemming from non-legal services incidental to the legal relationship "when the merits of the claim will necessarily depend on proof that an attorney violated a professional obligation—that is, an obligation the attorney has by virtue of being an attorney—in the course of providing professional services." (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1229, 1236-1237 [one-year bar "applies to claims whose merits necessarily depend on proof that an attorney violated a professional obligation in the course of providing professional services. In this context, a 'professional obligation' is an obligation that an attorney has by virtue of being an attorney, such as fiduciary obligations, the obligation to perform competently, the obligation to perform services contemplated in a legal services contract into which an attorney has entered, and the obligations embodied in the State Bar Rules of Professional Conduct."].) (*See also Quintilliani v. Mannerino* (1998) 62 Cal.App.4th 54, 68 [one-year statute of limitations applied to breach of contract and breach of fiduciary duty causes of action arising out of attorney-client relationship and legal services even though intertwined with non-legal services].)

A. Statute of Limitations Applicable to Plaintiff's Causes of Action

Plaintiff generally concedes that the one-year statute of limitations under Code of Civil Procedure section 340.6 applies, except that she argues that the four-year statute of limitations applies to her breach of contract claim. (Opp. p. 2, ll. 5-6.) Plaintiff titled her first cause of action as "breach of contract and professional negligence," and the allegations show that the first cause of action is directly tied to and based on defendants' alleged professional misconduct in rendering services to her under their engagement agreement. (Compl. ¶¶ 1-36.) The breach of fiduciary duty claim alleged in the second cause of action is similarly directly based on allegations of professional misconduct in defendants' rendering of legal services to Plaintiff as part of their engagement in the Kim Action. (Compl. ¶¶ 3, 38-44.) Further, Plaintiff expressly cites and relies on Rule of Professional Conduct 1.16(e)(2) and defendants' alleged violation of "ethical responsibilities" as the basis for her third cause of action for defendants' alleged failure to timely return her retainer. (Compl. p. 9, ll. 6 and 24.)

The causes of action as alleged by Plaintiff are all based on claims that defendants violated professional obligations they have by virtue of being attorneys in the course of rendering professional services to Plaintiff in the Kim Action. (*Lee v. Hanley, supra*, 61 Cal.4th at 1129.) Therefore, the one-year statute of limitations of Code of Civil Procedure section 340.6(a) applies to all causes of action alleged in the complaint.

B. Commencement of Statute of Limitations Based on Actual Injury

"Actual injury occurs when the client suffers any loss or injury legally cognizable as damages in a legal malpractice action based on the asserted errors or omissions. [Citations omitted.] Under the Legislature's codification of *Budd*, section 340.6, subdivision (a)(1), will not toll the limitations period once the client can plead damages that could establish a cause of action for legal malpractice." (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 743.)

Laird v. Blacker (1992) 2 Cal.4th 606 cited by Plaintiff, decided before the California Supreme Court's decision in *Jordache*, addressed when a client sustains "actual injury" for the statute of limitations to begin to run under Code of Civil Procedure section 340.6. Based on the facts and issues presented in that case, the Court held that the one-year time period to file a malpractice action "commences when a client suffers an adverse judgment or order of dismissal in the underlying action on which the

malpractice action is based." (*Id.* at 609, 615.) The Court rejected the plaintiff's contention that the statute of limitations is tolled while an appeal of the judgment or dismissal of the underlying action is pending. (*Id.* at 615.) "Section 340.6 and its legislative history make clear that once a client has been injured by an adverse judgment, the limitations period commences and is not tolled by filing an appeal absent continuous representation by the trial attorney. [Citation omitted.]" (*Id.* at 618.)

Courts distinguish between the fact of damage and the amount of damage in analyzing whether actual injury has occurred and the statute of limitations accrues. (*Id.* at 612.) Discovery of the fact of damage is enough to start the statute of limitations, even if the amount damages the plaintiff may ultimately sustain is uncertain. (*Id.* at 612, 613; *Jordache, supra*, 18 Cal.4th at 751, 752.) "A plaintiff need not suffer a *complete* loss of a right or reach final adjudication of an issue to sustain actual injury." (*Village Nurseries v. Greenbaum* (2002) 101 Cal.App.4th 26, 42 [italics in original].)

Plaintiff alleges that defendants' representation ended in July 2023, and that she lost her case against Kim in December 2023. (Compl. ¶¶ 18, 19.) She alleges defendants' professional malpractice was what caused her to lose her case, which she alleges occurred in December 2023 after her trial ended. (Compl. ¶¶ 14-17, 27, 32, 36, 38-41, 44, 52.) She alleges defendants should have refunded her retainer in July or August 2023 as soon as defendants formally withdrew as her counsel, which resulted in their "abandonment" of her and Park having to litigate her case through trial without attorney representation. (Compl. ¶¶ 18, 46, 49.) Plaintiff also alleges Gamboa improperly contacted the handwriting expert Nanette Barto, and based on that contact, she was forced to engage a new handwriting expert before the trial, another allegation indicating she may have suffered "actual injury" from defendants' alleged malpractice or other improper acts before December 2023. (Compl. ¶ 41.) She alleges she received some payment from the Firm in November 2023 and that after the trial concluded in December 2023, the Firm sent her a check refunding over \$13,000 in attorneys' fees, which she alleges was an admission of Gamboa's alleged misconduct and malpractice. (Compl. ¶¶ 19, 47, 52.)

These facts based on Plaintiff's own allegations show that (a) the attorney-client relationship ended by July or August 2023, and (b) she suffered "loss or injury legally cognizable as damages" from failure to return her retainer, having to engage a new handwriting expert, being forced to represent herself at trial, and losing at trial, allegations of actual injury beginning potentially as early as August 2023, or at the latest December 2023. Despite these allegations, she contends her causes of action did not accrue, and she did not suffer actual injury, until June 14, 2024. Plaintiff contends she alleged that judgments were entered in the Kim Action in June and July 2024, and that the statute of limitations did not commence under *Laird* until judgment was entered.

First, Plaintiff does not allege in her complaint that the entry of a final judgment in June 2024 was when she sustained actual injury. The only reference to the June 2024 judgment is in Plaintiff's prayer for relief. " '[T]he prayer is not part of the cause of action . . . ' [Citation omitted.]" (*Spotlight on Coastal Corruption v. Kinsey* (2020) 57 Cal.App.5th 874, 884 [addressing complaint labeled petition for writ of mandate but in which no reference to writ of mandate appeared in the body of the causes of action alleged, stating "Either the Complaint adequately alleges facts entitling Spotlight to a writ of mandate or it does not. Seeking a writ in the prayer adds nothing to that determination."]; *Slovensky v. Friedman* (2006) 142 Cal.App.4th 1518, 1535-1536 [" 'The prayer for relief is no part of the statement of fact, and the fact that too much is asked for does not affect the cause of action stated.'

"); *Standard Brands of California v. Bryce* (1934) 1 Cal.2d 718, 721 ["The subject matter of an action and the issues involved are determinable from the facts pleaded, rather than from the title or prayer for relief. [Citation omitted.]"].)

Second, even if the reference in the prayer to judgments entered in June or July 2024 could be considered in evaluating the sufficiency of the causes of action alleged, the Statement of Decision and Judgment by the Court attached as Exhibit 2 to Defendants' Request for Judicial Notice shows the decision and judgment against Plaintiff was issued and filed in the Kim Action on February 20, 2024. (Def. RJN Exh. 2.) Notably, Plaintiff has attached numerous documents to the complaint and her opposition to the demurrer, but she has not attached the "judgments" she asserts were entered in the Kim Action in June and July 2024, and she has not addressed the February 20, 2024 Statement of Decision and Judgment in her opposition.

In any event, though actual injury is alleged in the complaint between August and December 2023, the filed February 20, 2024 Statement of Decision and Judgment entered in the Kim Action is an "adverse judgment" under *Laird* and "actual injury" under *Jordache* sufficient to commence the statute of limitations not later than that date. Even if subsequent "judgments" were entered in the case based on the Statement of Decision and Judgment entered on February 20, 2024, Plaintiff cites no authority that would not make the statute of limitations commence based on entry of the Statement of Decision and Judgment on February 20, 2024 under *Laird*, *Jordache*, and the actual injury provision of Code of Civil Procedure section 340.6(a).

Conclusion on Demurrer Based on Statute of Limitations and Whether to Grant Leave to Amend

Based on Plaintiff's own allegations and the February 20, 2024 Statement of Decision and Judgment of which the Court takes judicial notice, the complaint "clearly and affirmatively" demonstrates that the claims alleged by Plaintiff are barred by the statute of limitations. (*Committee for Green Foothills, supra*, 48 Cal.4th at 42; *Lee v. Hanley, supra*, 61 Cal.4th at 1232.) Plaintiff commenced this action in June 2025, months after the one-year statute of limitations of Code of Civil Procedure section 340.6 had expired.

Plaintiff in her opposition asks for leave to amend if the demurrer is sustained, but Plaintiff does not explain what additional facts she can allege to demonstrate that her claims are not barred by the statute of limitations. Nevertheless, given that this is the first time the Court has reviewed the merits of Plaintiff's claims, the Court will grant Plaintiff to amend to try to state claims that are not time-barred under Code of Civil Procedure section 340.6.

16. 9:00 AM CASE NUMBER: L23-03430
CASE NAME: TALBOT LAW GROUP, P.C., VS. TIFFANY COOPER
HEARING IN RE: MOTION FOR RECONSIDERATION OF SANCTIONS ORDER
FILED BY:
TENTATIVE RULING:

Appearance required.